

Panama 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Panama during the year.

Significant human rights issues included credible reports of restrictions on freedom of expression and media freedom, including judicial harassment of journalists.

The government took credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media. The government generally respected this right, although journalists and media outlets reported threats of criminal or civil lawsuits to limit expression.

Physical Attacks, Imprisonment, and Pressure

Journalists reported being harassed to hinder their reporting on sensitive topics linked to corruption or criminal activities. Journalists also reported they engaged in self-censorship to avoid retaliation by the government, political parties, and private-sector actors.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

Threats against journalists by legitimate societal organizations and known criminal groups were common when journalists investigated certain cases or criminal activities.

In January, the National Union of Workers of Construction and Similar Industries (SUNTRACS) filed a criminal complaint against the president of the media group GESE and journalists Roberto Barrios and Aris Martínez for

reporting on the union's bank account closure. SUNTRACS accused the outlet of committing a "crime against honor and economic security." The Public Ministry dismissed the lawsuit.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right of private-sector workers to form and join independent unions, bargain collectively, and conduct strikes. The law prohibited antiunion discrimination and required reinstatement of workers terminated for union activity, but union leaders reported the government did not effectively enforce the law.

Government regulations on union membership placed some restrictions on freedom of association. The constitution mandated that only citizens could serve on a union's executive board. In addition, the law required a minimum of 40 persons to form a private-sector union (either by a company across trades or by trade across companies) and allowed only one union per business establishment.

Unions were required to register with the Ministry of Labor. If the ministry did not respond to a private-sector union registration application within 15 calendar days, the union automatically gained legal recognition, provided the request was submitted directly and with the required supporting

documentation. The Ministry of Labor granted legal recognition to 12 new unions during the year and was reviewing an additional nine applications.

Public-sector employees subject to Administrative Career regulations could organize to create professional associations to bargain collectively on behalf of their members, even though public institutions were not legally obliged to bargain with such associations. Public-sector professional associations were required to apply to the Ministry of Government for legal recognition.

Recognition was automatic if the government did not respond to the application within 30 days. The law stipulated only one association could exist per public-sector institution and there could be no more than one chapter per province. At least 50 public servants were required to form a professional association. Members of the national police were the only workers prohibited from creating professional associations.

Public-sector professional associations represented most public-sector workers. There were 27 public-worker associations registered under the National Federation of Public Servants, an umbrella federation of public-sector worker associations. Individual professional associations under the National Council of Organized Workers could negotiate on behalf of their members, but the Ministry of Labor could order compulsory arbitration.

The labor code protected the right of private-sector workers to strike, with limitations. A majority of employees in an enterprise had to join a strike to make it legal. Strikes were permitted only if they were related to improving

working conditions, a collective bargaining agreement, repeated violations of legal rights, or to support a strike by other workers on the same project, known as a solidarity strike. The law prohibited public-sector associations from calling strikes, and the law did not protect public-sector workers from losing their jobs if they participated in strikes.

The law prohibited strikes by Panama Canal Authority employees but allowed professional associations representing these employees to organize and bargain collectively on matters such as schedules and safety. The Panama Canal Authority provided a legal framework for arbitration to resolve disputes.

Approximately 26 percent of private sector employees were associated with a union, according to the International Labor Organization. Sectors such as banking, retail, and most call centers did not have unions due to efforts by employers to prevent unions from organizing.

Public administrations generally dismissed public workers without citing a legal basis and always without paying negotiated employment benefits such as paid vacation leave, or severance pay.

The government did not consistently enforce the labor code in the private sector and was less likely to enforce the law in rural areas. Penalties for violations of freedom of association, collective bargaining, and the right to strike were commensurate with those for analogous violations such as civil

rights violations and were sometimes applied against violators.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law provided for a national minimum wage for private-sector employees that was revised biannually. The minimum wage was above the poverty line. Most workers formally employed in urban areas earned the minimum wage or more. The minimum wage for public workers was above the poverty line, although the wage was not revised biannually.

The law established a standard workweek of 48 hours, provided at least one 24-hour rest period weekly, limited the number of hours worked per week, provided premium pay for overtime, and prohibited compulsory overtime. There was no annual limit on the total number of overtime hours allowed. If employees worked more than three hours of overtime in one day or more than nine overtime hours in a week, excess overtime hours had to be paid at an additional 75 percent above the normal wage.

Occupational Safety and Health

The Ministry of Labor was responsible for setting occupational safety and health (OSH) standards. Standards were generally current and appropriate for the main industries in the country. The law required employers to provide a safe workplace environment, including the provision of protective clothing and equipment for workers. The government proactively identified unsafe conditions. Labor inspectors conducted a census to identify economic activities in certain regions and schedule inspections. According to government officials and union members, workers could remove themselves from situations that endangered health or safety without jeopardy to their employment, but some chose not to do so because of perceived fear of losing their job. Several employers preferred to pay fines rather than improve workplace safety conditions. Although government inspectors had the legal authority to inspect facilities any time, the government accommodated periodic requests from companies to postpone inspections. Union representatives claimed various large companies at ports used this tactic against union or government inspections.

Wage, Hour, and OSH Enforcement

The Ministry of Labor generally enforced minimum wage, overtime, and OSH laws in the formal sector. Penalties were regularly applied against violators. Union representatives said the number of inspectors and safety officers was insufficient to enforce wage, hour, and OSH regulations adequately in the

formal sector. Penalties were not commensurate with those for similar violations such as fraud or negligence. The Ministry of Labor maintained two WhatsApp lines to receive anonymous complaints from workers. Additionally, workers could call a state-managed 311 hotline to place complaints.

According to official sources, nearly half of the working population worked in the informal sector. The government did not effectively enforce labor laws in the informal sector.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements.

Lengthy pretrial detention was a problem. According to official statistics, as of August, approximately 35 percent of individuals held in prison had not been convicted of a crime.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution prohibited such practices, and there were no credible reports government officials employed them.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The legal minimum age for marriage was 18; the government effectively enforced the law.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, asylum seekers, and other persons of concern.

Provision of First Asylum

The law provided for granting of asylum or refugee status, and the government had a system for providing protection to refugees. The National Refugee Office (ONPAR) had a backlog of more than 5,000 cases due to slow and complex processes. As a result, many individuals in the country were unable to benefit from international protection. This included asylum seekers waiting for a decision on their asylum claim, recognized refugees who had not yet been informed of the decision, and persons who did not apply for refugee status due to the complexity of the process.

Persons who wished to request asylum could approach ONPAR directly or access ONPAR through the National Border Service, the National Migration Service, international organizations, or a nongovernmental organization. In

practice, however, there were reports of failure to refer cases to ONPAR as well as delays from ONPAR in addressing the cases.

Resettlement

Naturalization was accessible to persons who complied with legal requirements, including persons recognized as refugees. The main requirement was to have permanent residency for a certain period, which varied according to certain factors such as the nationality of the person or having Panamanian children.

d. Acts of Antisemitism and Antisemitic Incitement

Jewish community leaders estimated there were 15,000 Jewish individuals in the country. There were no reports of antisemitic incidents.

Jewish community leaders reported a few instances of antisemitic commentary on social media platforms during the country's 2024 electoral campaign.